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WORK RELATED SETTLEMENT IN THE UK



LATEST NEWS: Full UK ETA Enforcement Announced for February 2026 (<https://immigrationbarrister.co.uk/full-uk-eta-enforcen>

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WORK RELATED SETTLEMENT IN THE UK

The UK offers several routes to settlement by working in the UK. Work related settlement routes include the **Skilled Worker visa** (<https://immigrationbarrister.co.uk/personal-immigration/long-term-work-visas/skilled-worker-visa/>), the **Innovator visa** (<https://immigrationbarrister.co.uk/personal-immigration/business-visas/innovator-visa/>), the **Sole Representative of an Overseas Business** (<https://immigrationbarrister.co.uk/personal-immigration/business-visas/sole-representative-of-an-overseas-business-visa/>) category and the **UK Ancestry visa** (<https://immigrationbarrister.co.uk/business-immigration/other-work-visas/uk-ancestry-visa/>).

What are the main eligibility requirements for work related settlement?

Whichever category you apply under, in order to qualify for indefinite leave to remain you will need to satisfy UK Visas and Immigration that:

- You have spent a continuous period of 5 years lawfully in the UK in a permitted category;
- You have not been absent from the UK for more than 180 days in any rolling 12 calendar month periods preceding the date of application;
- You have sufficient knowledge of the English language (unless an exemption applies);
- You have taken and passed the Life in the UK test (unless an exemption applies).

Each of the work related settlement categories also have their own additional eligibility criteria, which are summarised below.

What else do I need to know about work related settlement?

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(f) you qualify for settlement, or indefinite leave to remain, you will be able to stay in the UK without any time restrictions.

Your settled status will lapse if you are absent from the UK for more than 2 years. If your ILR has lapsed, you may wish to consider applying for a **Returning Resident (/personal-immigration/settlement-in-the-uk/returning-residents/)** visa in order to return to the UK.

Achieving permanent resident status is central to qualifying for a British passport, since **Naturalisation as a British Citizen (/personal-immigration/british-citizenship/british-citizenship-naturalisation/)** requires that the applicant be settled in the UK.

You will not need to satisfy the English language requirement or pass the Life in the UK test if you are under 18 or at least 65 years of age. The Home Office also has a discretion to waive the requirement if it would be unreasonable to expect you to fulfil that requirement due to a mental or physical condition. Various other exemptions also apply.

If you are already in the UK but are unable to satisfy the English language requirement, you may be able to extend your permission to stay, so that you can prove your knowledge of English.

How our immigration barristers can help

Our immigration barristers regularly advise and assist employees and skilled workers, across a range of industries and in companies of all sizes, to achieve work related settlement in the UK.

Whether you require expert advice on the requirements of the Immigration Rules, an independent assessment of your prospects of qualifying for work related settlement or professional assistance with preparing an application for indefinite leave to enter or remain, our immigration barristers can help.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to family members as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

Indefinite Leave to Remain as a Skilled Worker



Indefinite Leave to Remain as a Sole Representative of an Overseas Business



Indefinite Leave to Remain as a Person with UK Ancestry

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Indefinite Leave to Remain as a Family Member (Dependents)

Naturalisation as a British Citizen

WHAT CAN WE HELP YOU WITH?

To arrange an initial consultation meeting with one of our immigration barristers, contact our work related settlement team on 0203 617 9173 or complete our enquiry form.

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Full UK ETA Enforcement Announced for February 2026

(https://immigrationbarrister.co.uk/full-uk-eta-enforcement-announced-for-february-2026/)

By Georgina Griggs - Immigration Barrister

05 Dec 2025

On 24 November 2025, the Home Office confirmed that from 25 February 2026 the UK will move to full enforcement of the ETA scheme for non-visa nationals.

(https://immigrationbarrister.co.uk/full-uk-eta-enforcement-announced-for-february-2026/)

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UK Asylum Reforms 2025: Restoring Order and Control?

(https://immigrationbarrister.co.uk/uk-asylum-reforms-2025-restoring-order-and-control/)

By Rosanna Atkinson - Legal Associate

03 Dec 2025

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(/ The Government has announced major reforms to the UK asylum system. "Restoring Order and Control" details changes to how refugees are protected and asylum claims handled.

(<https://immigrationbarrister.co.uk/uk-asylum-reforms-2025-restoring-order-and-control/>)

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What is a 'Genuine Student'?: A Guide for UK Student Visa Applicants

(<https://immigrationbarrister.co.uk/what-is-a-genuine-student-a-guide-for-uk-student-visa-applicants/>)

By Alexandra Pease - Barrister Partner

01 Dec 2025

When applying for a Student or Child Student visa under the UK's Student Route, one of the critical assessments you will face is the Genuine Student requirement.

(<https://immigrationbarrister.co.uk/what-is-a-genuine-student-a-guide-for-uk-student-visa-applicants/>)

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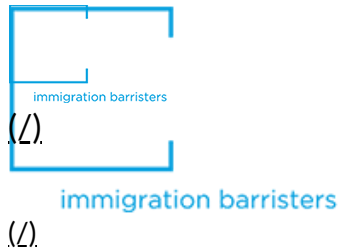
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